
Appeal Decision

Site visit made on 1 July 2026 by T Morris BA (Hons) MSc MRTPI

Decision by C McDonagh BA (Hons) MA MRTPI

an Inspector appointed by the Secretary of State

Decision date: 08 September 2026

Appeal Ref: 6008579

The Granary, Old Carlton Farm, Sandy Lane to Boundary, Stockton on the Forest, York YO19 5XS

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr Philip Hodgson against the decision of City of York Council.
 - The application Ref is 25/02300/FUL.
 - The development proposed is single storey side extension and first floor side extension.
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Decision

1. The appeal is dismissed.

Appeal Procedure

2. The site visit was undertaken by a representative of the Inspector whose recommendation is set out below and to which the Inspector has had regard before deciding the appeal.

Preliminary Matters

3. The description of development on the application form refers to extensions to a detached residential dwelling. I have therefore used the description from the decision notice within the banner heading above as it more accurately describes the extensions. I have removed reference to it being retrospective as that is not a description of development, albeit I have assessed the scheme on this basis.
4. On 17 August 2026, a revised National Planning Policy Framework (the Framework) was published by the Government. This is a material consideration in the decision-making process from the day of publication. Although the assessment of development in the Green Belt changed in the new version, the relevant exception put forth by the appellant was not materially altered. As such, it was not necessary to consult the main parties for their views on the new Framework and delay the decision.

Main Issues

5. The main issues are:
 - i) whether the development is inappropriate in the Green Belt, having regard to the Framework and relevant development plan policies;
 - ii) the effect of the development on the openness of the Green Belt;

- iii) the effect of the development on the character and appearance of the host dwelling and the surrounding area; and
- iv) whether any harm by reason of inappropriateness, and any other harm, would be clearly outweighed by other considerations, so as to amount to the very special circumstances required to justify the development.

Reasons for the Recommendation

Whether Inappropriate Development

6. The appeal site comprises a detached dwelling which is located in the York Green Belt. The Framework advises that inappropriate development is, by definition, harmful to the Green Belt and should not be approved except in very special circumstances.
7. The Framework establishes that development in the Green Belt should be regarded as inappropriate, subject to the exceptions which are set out in policy GB7. Policy GB1 of the City of York Local Plan (2025) (LP) provides similar direction in terms of its approach to development in the York Green Belt. As such, it is generally consistent with the Framework in this regard.
8. The exception set out in policy GB7(1)(b) of the Framework allows for the reuse, extension, alteration or replacement of an existing building, provided that the existing building is of permanent and substantial construction, is lawful in planning terms, and any extension or alteration will not result in a disproportionate increase in size compared to the original building. The Council concluded that the development is a disproportionate addition and would fail to meet this exception. The appellant has provided no reasons to disagree with this conclusion. Accordingly, I agree that the development is a disproportionate addition over and above the size of the original building. It therefore fails to meet the exception given in policy GB7(1)(b).
9. The appellant's case concerning the Green Belt is instead focussed on the policy GB7(1)(e) exception. This relates to the redevelopment of previously developed land (including a material change of use to residential or mixed-use including residential), which would not cause substantial harm to the openness of the Green Belt. The appellant argues that the development meets this exception because it represents the partial or complete redevelopment of previously developed land.
10. The Inspector on the most recent appeal decision at the site¹, issued in December 2025, considered this exception. Although they found that the appeal site constitutes previously developed land, they concluded that the development would not meet the paragraph 154 (g) exception at that time. This was because, as they explain at paragraph 6 of their decision, *'the redevelopment of land almost always involves the construction of new buildings, typically after demolition of previous ones. Whilst the proposal would involve some alteration to existing extensions and construction of new extensions, the original building would be altered but remain intact. What is proposed is therefore essentially the extension and alteration of the original building, rather than amounting to either the partial or complete redevelopment of the land'*.

¹ Appeal reference APP/C2741/D/25/3370861

11. I do not have all the evidence that the Inspector considered on the most recent appeal. However, I agree with their assessment that the redevelopment of land almost always involves the construction of new buildings, typically after demolition of previous ones. In the current appeal, the description of development originally provided by the appellant does not refer to any demolition or removal of previous buildings. The plans show the removal of a conservatory and store, but the new extensions do not appear to replace these in terms of their siting. I also can't be certain of the extent to which the sections of the building where the new extensions are situated were demolished prior to the erection of the latest additions.
12. Even if the previous extensions were fully demolished to make way for the extensions subject of this appeal, the original building remains in situ. Consequently, the works do not constitute the redevelopment of previously developed land as required by policy GB7(1)(e). Therefore, it represents inappropriate development in the Green Belt, contrary to the Green Belt aims of the Framework, as well as policy GB1 of the LP which seeks to prevent inappropriate development.

Openness

13. The Framework states that the fundamental aim of Green Belt policy is to prevent urban sprawl by keeping land permanently open. The essential characteristics of Green Belts are their openness and their permanence. Openness has a spatial and a visual dimension.
14. The extensions have introduced a considerable amount of additional bulk and mass to the appeal building, thus reducing the openness of the Green Belt in spatial terms. Although the building is visible from the access road which serves the group which the property forms part of, and is also visible from the surrounding fields, the site is relatively well screened by virtue of the trees and hedges in its garden. Therefore, I accept that the harm to visual openness is somewhat limited as a result of the site's screening, similar to the findings of the Inspector in the Chiltern Hill Field appeal decision, which was provided by the appellant².
15. Nevertheless, the development has still resulted in some harm to the openness of the Green Belt. Although it would not amount to substantial harm to openness specifically, it is still harm. This should be given substantial weight in accordance with policy GB6(2) of the Framework. Moreover, this is in addition to the harm caused by reason of its inappropriateness. The development therefore conflicts with policy GB1 of the LP which seeks to protect the openness of the Green Belt.

Character and Appearance

16. Notwithstanding the works which have already taken place at the site, I understand that the property was originally a modest agricultural building, possibly of similar scale and appearance to some of the other buildings within this small group which I observed on my site visit. This is also reflected in the existing plans which indicate that the main two-storey part of the building had a simple linear form and there were a series of subservient single storey extensions to this.
17. I have had regard of the Council's House Extensions and Alterations Supplementary Planning Document (2012) (SPD). This advises that a basic

² Appeal reference APP/P0240/W/23/3316421

principle is that any extension should normally be in keeping with the appearance, scale, design and character of both the existing dwelling and the street scene, and that the proposal should not dominate the house or clash with its appearance.

18. Due to their combined scale and mass, the single storey side extension and first floor side extension dominate the appearance of the original building, contrary to the SPD. Furthermore, the flat roof design of the single storey side extension jars with the pitched roof form of the main part of the building, with its harmful visual effects exacerbated by its conspicuous siting on the elevation facing the site's access. Consequently, the linear form of the main part of the building is barely perceptible, and it no longer appears as a modest agricultural building, contrary to the character of the rural buildings in the surrounding group. The use of matching materials in the extensions is not sufficient to overcome the excessive bulk and mass of the additions.
19. In reaching this conclusion, I recognise that the appellant would be willing to provide additional landscaping if necessary. Although the screening and additional landscaping would possibly go some way to further offset the limited harm in terms of the visual openness of the Green Belt, notwithstanding the observations of the Inspector on the most recent appeal, the extensions would remain, regardless of their visibility.
20. While matters of character and appearance are generally considered together, they are different assessments. To that end, just because a development may not be readily visible does not mean it would not be harmful to the character of a building or the relationship between a building and the local area. Moreover, the Framework is clear in policy DP3 that development should respond to its context (the history, character and features of their site and its setting), so that it integrates with and enhance its surroundings, such as through the arrangement of development plots and buildings, the use of materials and architectural features.
21. For the above reasons, the development is harmful to the character and appearance of the host dwelling and the surrounding area. It conflicts with policy D11 of the LP, which requires that developments respond positively to their immediate architectural context, local character and history.

Other Considerations

22. The appellant has drawn my attention to a comparison between what has been constructed on site and what could be built using permitted development rights. They suggest that this includes a potential two storey extension, a single storey extension, a roof extension, a porch, as well as single storey outbuildings. This would be after removing the existing extensions and that the quantum of development would be larger but would not be inappropriate development.
23. However, if a person wishes to ascertain whether an existing or proposed use or development is or would be lawful, the correct approach is for them to make an application for a lawful development certificate (LDC) under section 191 or 192 of the Town and Country Planning Act 1990. Although plans for a permitted development scheme have been provided, the appellant has not referred me to a LDC for the potential works they refer to, in order to confirm that the development depicted in the plans would be lawful. This limits the amount of weight I can give this fallback position.

24. Even if the permitted development scheme put forward by the appellant was supported by a lawful development certificate, some of the works would be in the form of single storey outbuildings, rather than extensions to the dwelling. The addition of outbuildings would not be as practical or desirable as an extension attached to the host building and as such, I would doubt the likelihood of this being a suitable fallback.
25. Therefore, I give the fallback position referred to by the appellant limited weight in support of the appeal. Moreover, the removal of permitted development rights in the event that I recommend that the appeal should be allowed would not alter this conclusion, since the harm of the development has already occurred.
26. Even if the building is now more sustainable and efficient as a result of the works and it better meets the modern-day needs of a family with ties to the local area, these benefits are of limited weight in the context of the substantial weight I am required to give to any harm to the Green Belt.
27. The absence of harm in terms of other technical matters and to neighbouring properties are neutral factors which do not weigh in favour of the appeal.

Planning and Green Belt Balance

28. The development amounts to inappropriate development in the Green Belt while there is also harm to openness. Consequently, the scheme should not be approved except in very special circumstances. Additional harm is caused to the character and appearance of the host dwelling and the surrounding area. The totality of the harm in terms of the Green Belt and character and appearance attracts substantial weight on each ground. Very special circumstances will not exist unless the harm to the Green Belt by reason of inappropriateness, and any other harm resulting from the proposal, is clearly outweighed by the other considerations.
29. For the reasons set out above, I attach limited weight to the permitted development fallback position, as well as to the other considerations put forward by the appellant. Consequently, the very special circumstances which are necessary to justify the development do not exist.

Conclusion and Recommendation

30. The development is contrary to the development plan as a whole as well as the advice in the Framework and there are no other material considerations which would outweigh this conflict. Therefore, I recommend that the appeal should be dismissed.

T Morris

APPEAL PLANNING OFFICER

Inspector's Decision

31. I have considered all the submitted evidence and my representative's report and on that basis the appeal is dismissed.

C McDonagh

INSPECTOR